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(Ministry of Home Affairs, Government of India)



# CTMSDEIS SI P5

## Introduction to Forensic Science and Law

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### UNIT IV LAW

# Content

- Bharatiya Sakshya Adhiniyam, 2023
- Bharatiya Nagrik Suraksha Sanhita, 2023
- Bhartiya Nyaya Sanhita, 2023



# Bharatiya Nyaya Samhita, 2023



The Bharatiya Nyaya Samhita, 2023 (BNS) replaces the Indian Penal Code, 1860 (IPC) and represents a modernized, streamlined, and rights-focused criminal code for India.

## Structural and Organizational Changes

- **Consolidation:** BNS reduces the number of sections by merging multiple related IPC sections into comprehensive single provisions, simplifying reference and application. For example, various counterfeiting offenses under IPC sections 230-232 and others are consolidated under one BNS section 178.
- **Definitions:** BNS consolidates all definitions into one alphabetically organized section (Section 2), unlike IPC's scattered definitions from Sections 8-52A, and adopts gender-neutral and inclusive language.
- **Administrative Efficiency:** BNS delegates commencement powers to the central government, a feature absent in IPC, and integrates cross-references with newly introduced criminal laws like the Bharatiya Nagarik Suraksha Sanhita for procedural coherence.

## Modern Offenses and Digital Adaptation

- **New Offenses:** BNS explicitly covers modern crimes such as organized crime (with sections 111, 112), group-based murder, cybercrime, and financial scams which were inadequately addressed in the IPC.
- **Digital Evidence and Communication:** The Act recognizes electronic communication as both a mode of committing crimes and as admissible evidence (e.g., promoting enmity electronically under Section 196). Defamation and obscene content laws now effectively cover digital formats.
- **Community Service:** Introduces community service as an alternative punishment for minor offenses, promoting rehabilitative justice.

## Enhanced Punishments and Victim Protections

- **Rigorous Penalties:** Penalties for several offenses, especially relating to organized crime, terrorism, and crimes involving children or marginalized communities, have been increased in severity, including fines and imprisonment terms.
- **Victim Focus:** The law raises the age of consent for rape from 15 to 18 years and introduces stricter penalties for crimes against women and children, reflecting a strong victim-centric approach.
- **Inclusive Definitions:** Expands gender definitions, modifies marital exceptions in sexual offenses, and broadens property-related offenses to include government and local authority property more explicitly.

## Language and Conceptual Modernization

- **Gender Neutrality:** Terms like “wife” and “minor girl” are replaced with “spouse” and “child” to ensure inclusivity.
- **Legal Clarity:** Removes outdated terminology and simplifies language to make the law clearer and more accessible.
- **Clarified Sentencing:** Terms like life imprisonment mean incarceration for the remainder of a person’s natural life, removing ambiguity present in IPC.



| Aspect                    | Indian Penal Code (IPC) 1860                | Bharatiya Nyaya Sanhita (BNS) 2023                   |
|---------------------------|---------------------------------------------|------------------------------------------------------|
| Number of Sections        | 511                                         | Reduced, consolidated sections for clarity           |
| Language                  | Often archaic, gender-biased                | Gender-neutral, modern language                      |
| Modern Crimes Coverage    | Limited or absent for cyber/organized crime | Explicitly covers organized crime, cybercrime        |
| Punishments               | Traditional penalties                       | Enhanced, with alternatives like community service   |
| Definitions               | Scattered across multiple sections          | Consolidated alphabetically for easier reference     |
| Digital Evidence          | Implicit or limited coverage                | Explicit recognition of electronic evidence          |
| Victim Protections        | Basic protections                           | Stronger protections, increased age of consent       |
| Administrative Provisions | Limited administrative efficiency           | Delegation powers and integration with criminal laws |

## Section 3. General Explanations

Section 3 of the Bharatiya Nyaya Sanhita, 2023 (BNS) titled "General Explanations," lays down foundational rules and interpretative principles applicable throughout the Sanhita. It aims to ensure consistency, clarity, and fairness in applying the law, particularly regarding acts, intentions, and joint liability.

### Key Points of Section 3 in BNS

- **Application of General Exceptions (3(1)):** Every offence definition and penal provision is subject to the general exceptions chapter, even if not explicitly stated in that provision. This avoids redundancy and ensures all exceptions apply uniformly.
- **Uniform Interpretation of Terms (3(2)):** Words and expressions defined in the BNS are to be used consistently throughout, unless context demands otherwise. This promotes clarity and uniformity in legal interpretation.
- **Possession (3(3)):** Property in possession of a person's spouse, servant, or clerk is deemed to be in that person's possession, expanding the scope of responsibility.
- **Acts and Omissions (3(7)):** Both positive acts and failures to act (when legally required) that violate the law are considered equally criminal, increasing accountability.
- **Principle of Group Liability (3(5)-(3(9)):** When multiple persons act with a common intention to commit a criminal act, each is liable as if they committed it alone.
- **Section 3(5)** sets liability for joint acts with a common intention.
- **Section 3(6)** addresses acts done with criminal knowledge or intention, making the culpability proportional to individual intent.
- **Section 3(9)** allows for different punishments if participants commit distinct offences without shared intention.

## Actus Reus and Mens Rea in BNS Section 3

- Actus Reus (the physical act or omission) and Mens Rea (the mental intent or knowledge) are foundational but not separately defined in Section 3; their principles are embedded in the explanations regarding acts and omissions, and joint liability with common intention or knowledge.
- The section clarifies that liability arises not just from the physical act but also from criminal knowledge or intention underlying the act.

### Illustrative Example

- If A, B, and C jointly commit a forcible act, and one unintentionally causes murder, all can be liable if they shared the intention or knowledge of murder. Otherwise, liability is apportioned based on actual intent or knowledge.

## S.45-62: Abetment, Conspiracy, and Attempt

### Abetment (Sections 45-54)

- **Definition of Abetment (S.45):** A person abets an act if they instigate another to do it, engage in a conspiracy for its commission, or intentionally aid by any act or omission facilitating it. This includes instigation through willful misrepresentation or concealment of facts to cause the act.
- **Liability Even If Different Act Committed (S.50, 51):** The abettor is liable even if the act committed differs from the one abetted, provided it was a probable consequence of the abetment and done under the instigation or aid of the abettor.
- **Collective and Individual Liability:** If multiple persons abet jointly, all are liable as if they abetted individually.
- **Punishments (S.49, 52, 56):** Punishments correspond to the nature of the principal offence, with provisions for cumulative punishments both for the act abetted and the actual act committed.



## Criminal Conspiracy (Sections 55-60)

- **Definition (S.55):** Criminal conspiracy involves an agreement between two or more persons to commit an offence. Liability arises if an act or unlawful omission takes place in pursuance of that conspiracy toward committing that offence.
- **Punishment (S.57):** Punishment is provided based on the gravity of the offence conspired. Conspiracy to commit serious offences like ones punishable with death or life imprisonment is punished similarly as the offence itself.
- **Exceptions & Special Cases:** Conspiracies to commit petty offences have lighter punishments, reflecting proportionality and fairness.

## Attempt (Sections 61-62)

- **Definition and Liability (S.61):** Attempt involves an act done towards the commission of an offence, coupled with intent to commit that offence, but where the offence is not completed.
- **Punishment (S.62):** The punishment for attempt mirrors the seriousness of the intended offence, often reduced but proportionate to the punishment of the full offence.
- **Exceptions:** Certain offences, like culpable homicide not amounting to murder, have specific attempt-related provisions.

## Section 63: Sexual Offences (Rape)

### Definition of Rape:

- The BNS defines rape expansively as any of the following acts done without the consent of a woman:
- Penetration by a penis into the vagina, mouth, urethra, or anus (to any extent).
- Insertion of any object or part of the body other than the penis into the vagina, urethra, or anus.
- Causing the woman to engage in such acts with the offender or another person.
- Manipulation of the woman's body to cause penetration.
- Application of mouth on the woman's vagina or anus, including acts usually classified under oral sex.

### Consent and Will:

- Consent is treated as a free and voluntary agreement by a woman with full understanding of the nature and consequences of the act. Physical resistance is not a necessary element to prove non-consent. Consent obtained by deceit, coercion, or while incapacitated (e.g., unconsciousness due to drugs or alcohol) is not valid.

### Protection of Minors:

- Any sexual act involving minors (under 18 years) is considered rape regardless of consent.

### Marital Exception

- The BNS retains a controversial exception exempting sexual intercourse by a husband with his wife if she is above 18 years, i.e., marital rape is not criminalized in this scenario, though this remains subject to public debate.

## S.101: Substantive provisions on murder

Murder is defined as culpable homicide that meets any of the following conditions (exceptions excluded):

- **Intention to Cause Death (Clause a):**  
The act causing death is done with the specific intention to cause the death of the person.
- **Intention to Cause Bodily Injury Likely to Cause Death (Clause b):**  
The act is done with the intention to cause bodily injury to a person, and the offender knows that such injury is likely to cause death. This implies specific knowledge about the victim's condition.
- **Intention to Cause Bodily Injury Sufficient to Cause Death (Clause c):**  
The act is done with the intention to cause bodily injury to any person, such that the injury is sufficient in the ordinary course of nature to cause death. This is a more serious standard than "likely to cause death."
- **Knowledge that Act is Imminently Dangerous (Clause d):**  
The offender commits an act knowing it to be imminently dangerous and without any excuse or justification, and such act is likely to cause death or bodily injury sufficient in the ordinary course of nature to cause death.



## **Exceptions to Murder** (Reducing to Culpable Homicide)

Section 101 also lists exceptions where culpable homicide does not amount to murder, including:

- Death caused under grave and sudden provocation.
- Acts done in private defense exceeding the right to private defense.
- Death caused by a public servant in discharge of duty but in excess of powers.
- Death caused by consent or by sudden fight without premeditation.
- Instances of euthanasia with consent and other exceptional circumstances.

## S.178. Counterfeiting

**Offense Description:** The section criminalizes:

- Counterfeiting of any coin, government stamps issued for revenue purposes, currency notes, or bank-notes.
- Knowingly performing any part of the counterfeiting process, including manufacturing, printing, or producing counterfeit items.
- Altering genuine coins to appear like coins of higher denomination or different appearance, including diminishing the weight, changing the composition, or modifying the appearance of the coin.
- Counterfeiting government stamps by causing a genuine stamp of one denomination to appear like a different denomination.

**Examples:**

- Creating fake Indian currency coins and using them in transactions.
- Printing fake currency notes or digital versions of government revenue stamps for fraudulent use.
- Altering a genuine coin's appearance to make it look like a rare or higher-value coin.

**Punishment:**

- Imprisonment for life, or imprisonment for a term up to ten years.
- In addition to imprisonment, the offender is liable to pay a fine.
- The severity of punishment underscores the economic and governmental risks posed by counterfeiting activities.

**Liability on Trafficking and Possession:**

- Any person involved in trafficking, using as genuine, or possessing counterfeit currency or stamps knowing them to be fake is punishable under this section.
- Possession with intent to use counterfeit items as genuine is also criminalized.



## S.317: Handling stolen property, respective definitions, and prosecution

**Definition of Stolen Property (317(1)):** Property is considered stolen if its possession has been transferred by theft, extortion, robbery, cheating, criminal misappropriation, or criminal breach of trust, whether occurring within or outside India. However, if the property subsequently comes into the possession of a person legally entitled to it, it ceases to be stolen property.

**Receiving or Retaining Stolen Property (317(2)):** Any person who dishonestly receives or retains stolen property, knowing or having reason to believe it to be stolen, is guilty of an offence. The standard "reason to believe" implies a higher threshold than suspicion, suggesting circumstances that would lead a reasonable person to conclude the property was stolen.

**Receiving Property from Dacoity (317(3)):** Receiving or retaining property knowing it to be stolen through dacoity (armed robbery) or from members of a gang of dacoits is punishable with more severe penalties, including imprisonment up to life or ten years.

**Habitual Dealing in Stolen Property (317(4)):** A person who habitually buys, receives, or deals with stolen property knowing or having reason to believe it to be stolen is liable for punishment. This provision targets repeat offenders profiting from stolen goods.

**Assisting in Concealment or Disposal (317(5)):** Voluntarily assisting in concealing, disposing, or dealing with stolen property while knowing or having reason to believe it to be stolen is also criminalized.

### Punishment

- The imprisonment term for dishonestly receiving or retaining stolen property can be up to three years, or a fine, or both.
- For receiving stolen property connected to dacoity or habitual dealing, imprisonment can extend up to life or ten years, including fines.

# The Bharatiya Nagarik Suraksha Samhita, 2023



The Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) is the new procedural criminal law of India that replaces the Code of Criminal Procedure (CrPC), 1973. It came into effect on July 1, 2024, aiming to modernize and streamline the criminal justice process with a strong citizen-centric focus and incorporation of technological advancements.

- **Purpose:** BNSS seeks to consolidate and amend the law relating to criminal procedure, with an emphasis on efficient delivery of justice, transparency, protection of citizens' rights, and accountability of law enforcement agencies.
- **Citizen-Centric Approach:** The law underscores the protection and empowerment of citizens ("Nagarik" meaning citizen and "Suraksha" meaning protection), aiming to balance state power with individual freedoms and rights.
- **Structure:** Comprising 39 chapters and 2 schedules, BNSS covers the constitution and powers of courts, arrest procedures, investigation, bail, trial, sentencing, appeals, and other procedural aspects.





- **Technological Integration:** BNSS includes provisions for electronic filing, service of summons and notices through electronic means, use of forensic and technological tools for investigation and trials, and recognizes electronic evidence explicitly.
- **Law Enforcement Reforms:** The Act mandates establishment of Directorate of Prosecution at district and state levels for better management of criminal cases and gives greater powers and responsibilities to police officers, including appointment of special executive magistrates.
- **Rights and Safeguards:** It introduces more stringent safeguards against illegal detention and abuse of power by law enforcement, sets timelines for investigation and trial to reduce case backlogs, and regulates arrests with higher-ranking officer permissions required in certain scenarios.
- **Modernization of Court System:** Abolishes concepts like metropolitan magistrates and assistant judges, standardizes court powers, and raises fines and punishments to align with modern justice needs.
- **Enhanced Security Provisions:** Strengthens legal framework for countering terrorism, organized crime, cybercrime, and other contemporary threats.



# FIR (First Information Report)

A First Information Report (FIR) is a formal complaint made to the police about the commission, occurrence, or suspicion of a cognizable offence. It is the first step to initiate a police investigation. As per the current legal framework including provisions under the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS), the process, content, and format of FIR registration are detailed to ensure prompt and transparent reporting.

## Registration of FIR

**Where to File:** The FIR must be registered at the police station having jurisdiction over the area where the offence was committed. However, under the BNSS, a "Zero FIR" can be filed at any police station regardless of jurisdiction to avoid delays in recording complaints. This FIR is then transferred to the relevant police station.

**Duty of Police:** Police are legally obliged under Section 173 of BNSS (superseding Section 154 CrPC) to register an FIR upon receiving information about a cognizable offence (those warranting police investigation without magistrate permission). There is no discretion to refuse registration if the information discloses a cognizable offence.

**Online Filing:** Many states provide options for filing FIRs online through official portals or mobile applications. The complainant must physically sign the FIR within 3 days of electronic submission for authentication.

## Content and Format of FIR

- Detailed Information Required:
- Description of the offence (what happened)
- Date, time, and place of occurrence
- Names, descriptions, or any known details of witnesses and suspects
- Identity of the complainant and any other relevant information like evidence or circumstances
- Police record this information verbatim either by writing down the complainant's oral statement or by accepting a written complaint.

**Verification and Signature:** The complainant is asked to verify and sign the FIR document to confirm accuracy. They must be provided with a free copy containing FIR number, date, and police officer's signature.

## Legal Safeguards and Follow-up

- **Non-Discrimination:** Police must register FIR without discrimination and cannot decline on jurisdictional or other improper grounds.
- **Right to Legal Counsel:** Complainants have the right to legal advice during registration and investigation.
- **Tracking and Investigation:** After FIR registration, police initiate investigation, collecting evidence and recording statements. Complainants are entitled to receive updates about case progress, usually within a stipulated period (e.g., 90 days).
- **Remedies for Refusal:** If police refuse to register FIR, complainants can approach the Superintendent of Police or Magistrate to get an FIR registered

# Zero FIR



Zero FIR is a significant provision under the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) that allows any police station to register a First Information Report (FIR) for a cognizable offence, irrespective of whether the incident took place within that police station's territorial jurisdiction. This reform ensures the prompt recording of complaints without delays caused by jurisdictional issues.

## Key Points on Zero FIR under BNSS

**Statutory Mandate:** Section 173 of BNSS explicitly provides the legal basis for Zero FIR, ensuring that anyone can report a cognizable offence at any police station without jurisdictional restrictions.

### Procedure:

- When a complaint is lodged at a non-jurisdictional police station, the station registers the FIR with a temporary number called "Zero FIR."
- Upon registration, the police immediately initiate preliminary investigation or inquiry.
- The case is then transferred promptly to the appropriate police station that has jurisdiction over the area where the offence was committed for further investigation.
- The complainant is provided a copy of the Zero FIR free of cost as evidence of complaint registration.

**Purpose:** Zero FIR facilitates urgency, especially in serious crimes like sexual offences or violent crimes, ensuring no delay in recording the complaint and preserving evidence timely.



## Section 6: Hierarchy and types of courts

Section 6 of the Bharatiya Nagarik Suraksha Samhita (BNSS), 2023, defines the hierarchy and types of criminal courts established in every State for adjudicating criminal matters. It provides a structured judicial framework balancing jurisdiction, authority, and specialization.

### Courts Listed under Section 6 BNSS

- **Court of Sessions:** Established in every sessions division, presided over by a Sessions Judge appointed by the High Court. Sessions Courts try serious offences with punishments exceeding seven years and oversee appeals from lower courts.
- **Judicial Magistrates:**
  - **First Class Judicial Magistrates:** Handle criminal cases punishable up to three years or fines not exceeding ₹10,000. They also include Chief Judicial Magistrates (CJMs) who supervise magistrates within the district.
  - **Second Class Judicial Magistrates:** Deal with less serious cases punishable up to one year or fines up to ₹5,000. The High Court appoints these magistrates and may establish Special Courts for particular cases or classes of cases.



- **Executive Magistrates:** Appointed by the State Government, these magistrates have administrative functions related to maintaining public order and security. They hold powers under the BNSS distinct from judicial magistrates and may include District Magistrates or Sub-divisional Magistrates.
- **Special Executive Magistrates:** These are appointed for specific terms or functions, generally police officers of a certain rank, to exercise some executive magistrate powers in designated areas.
- **High Courts:** Present in each State, they supervise lower courts, hear appeals, and have original jurisdiction in certain criminal matters. Their judges are appointed per constitutional provisions.
- **Supreme Court of India:** The apex court with original, appellate, and advisory jurisdiction over criminal and civil matters, including constitutional interpretation, ensuring uniform justice nationwide.

### Subordination and Control

- Judicial magistrates are subordinate to the Sessions Judge with the Chief Judicial Magistrate exercising administrative control over other magistrates.
- Executive Magistrates operate under State Government directions but may also receive powers delegated from District Magistrates or High Courts.



# Section 197. Ordinary place of inquiry and trial

Section 197 of the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS), titled "Ordinary place of inquiry and trial," governs the jurisdictional rules regarding where an offence is to be inquired into and tried. It essentially corresponds to Section 177 of the earlier Code of Criminal Procedure (CrPC), 1973, but reflects updated judicial and procedural standards under BNSS.

## Key Points:

- **Jurisdiction:** Every offence shall ordinarily be inquired into and tried by a court within whose local territorial jurisdiction it was committed. This principle ensures that offences are handled locally to the place of occurrence, promoting accessibility and contextual understanding.
- **Exceptional Provisions:**  
The BNSS also allows special cases where certain offences may be tried outside the local jurisdiction for reasons such as public interest or security concerns. The law empowers higher courts or the government to direct handling of trial in a different court when justified.
- **Scope:** This section covers all cognizable and non-cognizable offences and emphasizes the proper venue for inquiry and trial to avoid jurisdictional confusion and delay.
- **Alignment with Investigation:** It coordinates with investigation jurisdiction rules, including FIR registration and police powers, ensuring consistency between investigation and trial venues.

## Practical Implications:

A court outside the jurisdiction where the offence occurred does not have ordinary power to try the case unless special orders or exceptions apply. It reduces conflicts in jurisdiction and related procedural challenges during inquiry and trial.

# Sections 105/185. Video recording of search/seizure.

Sections 105 and 185 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS), introduce mandatory provisions for video (audio-video) recording of search and seizure processes conducted by police or investigating officers.

## Section 105: Video Recording of Search and Seizure

- **Mandatory Audio-Video Recording:**

Section 105 mandates that every search of a place or the act of taking possession of property, articles, or things—as well as preparation of the seizure list and taking witness signatures—must be recorded using audio-video electronic means, preferably by mobile phone.

- **Scope of Application:**

This requirement applies to searches and seizures conducted under Chapter VII and under Section 185 of the BNSS. The mandate creates a digital record of the entire search/seizure process for later review.

- **Procedure:**

The process, from initiation to the finalization of the seizure memo, must be captured on video. The recording is to be forwarded without delay to the District Magistrate, Sub-divisional Magistrate, or Judicial Magistrate of the first class.





## Section 185: Special Reference

Section 185 is concerned with searches relating to public order, national security, or when there is a credible threat. The video recording requirement specifically extends to these searches, with BNSS clarifying that such searches "shall be recorded through audio-video electronic means preferably by mobile phone" as per the proviso of Section 185(2).

## Practical Implications

- Both sections together ensure that the crucial aspects of law enforcement—search and seizure—are digitally documented, reducing the risk of disputes, false claims, or procedural lapses.
- The audio-video record provides a verifiable trail for courts and oversight authorities if the legality or manner of the search/seizure is challenged.
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**Purpose and Impact:** The goal is to ensure transparency, impartiality, and accountability. Such recording prevents tampering with evidence and safeguards the rights of those involved, making the process more robust compared to previous written-only procedures.



# Section 176. Procedure for investigation

Section 176 of the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) outlines a detailed, stepwise procedure for police investigation ensuring transparency, forensic involvement, and proper reporting.

Key Steps in Investigation Procedure as per Section 176 BNSS

## 1. Suspicion of Crime:

- When an officer in charge of a police station has reason to suspect commission of an offence they are empowered to investigate, they must immediately send a report to a Magistrate authorized to take cognizance of such offences upon a police report.

## 2. Initiation of Investigation:

- The officer must either personally proceed to the crime scene or depute a subordinate officer (above a prescribed rank) to investigate the facts and circumstances of the case, and take necessary measures for discovery and arrest of the offender.

## 3. Exceptions:

- For minor offences against a named individual, the officer need not personally investigate or send a subordinate officer to the spot.
- If the officer believes there are insufficient grounds for investigation, they may refrain from proceeding, but must state reasons in the report.



#### **4. Reporting to Magistrate:**

- The officer must forward reports regularly, including reasons for any deviations. In specific cases, the informant must be promptly notified.

#### **5. Forensic Mandate for Serious Crimes:**

- For offences punishable with imprisonment of seven years or more, the officer must ensure a forensic expert visits the crime scene for evidence collection and that the entire process is video-recorded using electronic devices like mobile phones.

#### **6. Use of Other State Facilities:**

- If forensic facilities are unavailable locally, the State Government must notify use of facilities in other States until local capabilities develop.

#### **7. Victim Sensitive Procedures:**

- In cases like sexual offences, victims' statements should be recorded at their residence or preferred location in the presence of female officers, witnesses, or social workers, and with audio-video recording.

# Section 178. Magistrate's Powers in Case Investigation



Section 178 of the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) empowers a Magistrate, upon receiving a report under Section 176, to take control over the investigation process. The Magistrate may direct the police to conduct an investigation, commence a preliminary inquiry themselves, or delegate the inquiry or disposal of the case to a subordinate Magistrate.

Detailed Explanation of Section 178 BNSS:

- **Magistrate's Authority:**
  - Upon receiving the police report submitted under Section 176 (which outlines the initiation of investigation procedures), the Magistrate has full discretion to:
  - Order a thorough police investigation into the case to gather evidence and apprehend offenders.
  - Personally conduct or supervise a preliminary inquiry if deemed appropriate, especially in non-cognizable or straightforward cases.
  - Assign a subordinate Magistrate to conduct the preliminary inquiry or manage case disposal.
- **Purpose:**
  - Section 178 ensures judicial oversight of investigations, particularly in cases that do not fall under automatic police jurisdiction. This protects the impartiality of investigations and facilitates judicial control over whether a case merits prosecution.
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- **Flexibility:**
  - The Magistrate's discretion to proceed with a preliminary inquiry or direct an investigation allows tailoring actions based on case complexity, evidence quality, and social interest.

## Section 180. Police examination of witnesses.

Section 180 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) deals with the examination of witnesses by the police during the course of an investigation. It sets out clear procedures and legal obligations to ensure that witness statements are properly recorded and safeguarded.

### Key Provisions

- **Authority to Examine:** Any police officer conducting the investigation, or any police officer of a rank specified by the State Government, may orally examine any person who is supposed to be acquainted with the facts and circumstances of the case.
- **Obligation of Witness:** The person examined is legally bound to answer all questions truthfully except those whose answers might incriminate them or lead to a penalty or forfeiture.
- **Recording of Statements:**
  - The police officer may reduce the witness's statements into writing, either in a question-and-answer format or as a narrative, ensuring a separate and true record for each witness.
  - Statements may also be recorded using audio-video electronic means to enhance transparency and accuracy.
  - For offences against women and certain serious crimes, statements must be recorded by a female police officer or any female official, accompanied by recording through audio-visual electronic means.
- **Witness Rights and Safeguards:** Witnesses cannot be compelled to make self-incriminating statements. Before examination, witnesses should be counseled to ensure comfort and accuracy. Independent witnesses should be present during audio-video recordings to prevent coercion or tampering.
- **Legal Use of Statements:** Statements recorded under Section 180 are part of the investigation and assist in trial preparation but are not substantive evidence themselves; the witnesses must testify in court.

## Section 184. Medical Examination of victim of rape

Section 184 of the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) lays down detailed protocols for the medical examination of victims of rape or attempted rape during the investigative stage.

### Key Provisions of Section 184 BNSS

- **Authorized Medical Practitioner:**

The medical examination must be conducted by a registered medical practitioner employed in a hospital run by the Government or a local authority. In the absence of such a practitioner, any other registered medical practitioner may conduct the examination, provided that proper consent is obtained.

- **Time Frame for Examination:**

The victim must be sent for medical examination within twenty-four hours from the time the authorities receive information relating to the commission or attempt of the offence.

- **Consent:**

No medical examination shall be conducted without the consent of the woman or a person competent to give such consent on her behalf. Consent is mandatory, safeguarding the victim's autonomy.

- **Examination Details to be Recorded:**

- The medical practitioner must prepare a detailed report stating:
- Name and address of the woman and the person by whom she was brought.
- Age of the woman.
- Description of material taken from the woman's person for DNA profiling.
- Marks of injury, if any, on the woman's body.
- General mental condition of the woman.
- Any other material particulars in reasonable detail.

- **Report Preparation:**

The report must clearly document reasons for conclusions drawn by the medical expert, specifying the consent obtained and noting the exact commencement and completion times of the examination.

- **Report Submission:**

The registered medical practitioner has a statutory duty to forward the report within seven days to the investigating officer, who in turn forwards it to the Magistrate involved in the case.

## Sections 193. Report of police officer on completion of investigation.

Sections 193 relate to the **police report after investigation** and the procedure concerning offences discovered **during the course** of an investigation.

- **Timely Completion:** Investigations must be completed without unnecessary delay. For certain offences like sexual offences under the Bharatiya Nyaya Samhita, investigations must be completed within two months from the date of recording information.
- **Police Report (Chargesheet):** Upon completion, the officer in charge of the police station must forward a detailed report to the Magistrate empowered to take cognizance of the offence. The report must include:
  - Names of the parties involved.
  - Nature of information.
  - Persons acquainted with the case.
  - Whether an offence appears committed and by whom.
  - Arrest status of accused.
  - Whether the accused has been released on bond or bail.
  - Attachments like medical examination reports for sexual offences.
  - Sequence of custody for electronic devices.
- **Communication:** The officer must keep the informant or victim informed about the progress of the investigation regularly (within 90 days).
- **Further Investigation:** If the report indicates the need for further investigation, the Magistrate or a superior police officer can direct additional investigation.
- **Submission of Relevant Documents:** Statements of witnesses the prosecution intends to examine must be forwarded with the report.
- **No Preclusion of Further Investigation:** Even after forwarding the report, further investigation can be undertaken if new evidence arises, and updated reports must be sent.





# Sections 194. Police to enquire and report on suicide, etc.

Section 194 of the Bharatiya Nagarik Suraksha Samhita, 2023 (BNSS) mandates detailed **police procedures for enquiries and reports on unnatural deaths** such as suicides, homicides, accidents, or deaths under suspicious circumstances.

Key Provisions of Section 194 BNSS:

- **Immediate Intimation:** Upon receiving information of suicide, homicide, death by accident, animal, machinery, or suspicious circumstances raising reasonable suspicion of an offence, the police officer in charge must immediately inform the nearest Executive Magistrate empowered to hold inquests.
- **On-Site Investigation:** The police officer must proceed promptly to the place of death, accompanied by at least two respectable local inhabitants, to conduct an investigation. The officer must examine the body, record any wounds, bruises, fractures, or other injuries, and draw up a detailed report describing the apparent cause of death and the likely weapon or instrument (if any).
- **Report:** The investigatory report must be signed by the officer and the witnessing inhabitants and forwarded to the District or Sub-divisional Magistrate within 24 hours.
- **Medical Examination:** Medical examination of the body by a qualified doctor (Civil Surgeon or equivalent) is mandatory especially when:
  - The deceased is a woman who died within seven years of marriage.
  - Suspicion exists that the death involved foul play.
  - Requested by a relative or the Magistrate.
- **Authorized Magistrates:** Only District Magistrates, Sub-divisional Magistrates, or specially empowered Executive Magistrates are authorized to conduct legal inquests.



## Section 329. Reports of Certain Government Scientific experts.

Section 329 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) deals with the admissibility and use of reports prepared by designated Government scientific experts in legal proceedings.

### Key Provisions

- **Admissibility of Expert Reports:** Any report prepared and signed by a Government scientific expert on matters submitted to them for examination or analysis during any inquiry, trial, or proceeding under BNSS may be used as evidence without the expert's oral testimony being initially required.
- **Court's Authority to Summon Experts:** The court may, at its discretion, summon and examine the scientific expert regarding the subject matter of their report to clarify or scrutinize the findings.
- **Deputation in Case of Non-Attendance:** If the expert is unable to personally attend court, they may depute a responsible officer conversant with the case who can give evidence on their behalf unless the court specifically requires the expert's personal appearance.
- **Covered Government Experts:** This section applies to a specified category of scientific experts including:
  1. Chemical Examiners or Assistant Chemical Examiners to Government.
  2. Chief Controller of Explosives.
  3. Director of the Finger Print Bureau.
  4. Directors or deputies at Central or State Forensic Science Laboratories.
  5. Serologists to the Government.
  6. Any other scientific expert notified by the State or Central Government.

# Bharatiya Sakshya Adhiniyam, 2023



The Bharatiya Sakshya Adhiniyam, 2023 (BSA) is a landmark legislation enacted to replace the Indian Evidence Act, 1872, modernizing India's legal framework for the admissibility and evaluation of evidence in judicial proceedings. It came into effect on July 1, 2024, and introduces contemporary technological and procedural reforms tailored for the 21st-century justice system.

- **Modernization of Evidence Law:** The BSA updates the principles of evidence by explicitly recognizing electronic and digital records—including emails, server logs, voice mails, and data stored on devices—as admissible documentary evidence on par with traditional paper documents.
- **Clearer Guidelines for Admissibility:** The Act provides detailed provisions to address the complexities of modern evidence, such as authentication, preservation, and presentation of electronic evidence, reducing ambiguity prevalent under the older law.



- **Protection Against Custodial Injustice:** It strengthens safeguards against the admissibility of confessions or information obtained through coercion or custodial violence, ensuring fair trials and the protection of human rights.
- **Retention of Core Legal Principles:** BSA retains critical concepts such as relevancy of facts, burden of proof, types of evidence (primary and secondary), and legal presumptions, while revising and streamlining certain provisions for efficiency and clarity.
- **Expansive and Updated Definitions:** The new Act consolidates and updates definitions related to evidence, such as “document,” to encompass digital formats and storage media prevalent today.
- **Judicial Efficiency and Fairness:** With clearer frameworks and adoption of technological tools, the BSA aims to expedite judicial proceedings while upholding fairness and due process.

## S.2(1)(e) – Definition of Evidence

Section 2(1)(e) of the Bharatiya Sakshya Adhiniyam (BSA), 2023 defines "Evidence" broadly.

It includes:

- All statements—both oral and electronic statements made by witnesses before the court relating to facts under inquiry, termed as oral evidence.
- All documents, including electronic or digital records produced for court inspection, termed documentary evidence.

This definition emphasizes that evidence includes both traditional oral testimony and modern electronic forms such as emails, audio-video recordings, computer printouts, and other digital data stored on devices like mobiles, pen drives, or hard drives.

## Section.3-14 – Relevancy of Facts

Sections 3 to 14 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 primarily deal with the relevancy of facts in the context of evidence law. These sections provide foundational principles on which facts are considered relevant and admissible in a court of law when deciding cases.

- **Section 3:** Limits evidence to relevant facts only; unrelated facts are inadmissible.
- **Section 4:** Facts forming part of the same transaction (res gestae) are relevant if they help explain the matter.
- **Section 5:** Motive, preparation, or conduct explain facts in issue and may be relevant.
- **Section 6:** Facts showing relationship between parties (e.g., conspiracy or agency) are relevant.
- **Section 7:** Facts that explain or rebut relevant facts may also be admitted.
- **Sections 8-10:** Facts affecting the existence or non-existence of a fact in issue are relevant; including previous and subsequent conduct.
- **Section 11:** Admissions by parties or their agents relevant unless made under coercion or fraud.
- **Section 12-14:** Confessions and statements made under certain conditions are relevant; statements made by persons not parties to the proceeding may also be relevant if made during the course of transactions related to facts in issue.

# Section.15-27 – Admission and Confession



- Sections 15 to 27 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 primarily cover the law on Admissions and Confessions, laying down principles regarding their relevancy, proof, and evidentiary value.
- These sections aim to clarify the principles governing the use of admissions and confessions in judicial proceedings, ensuring such evidence is admissible only when given voluntarily and reliably, thereby protecting rights of accused and fairness in trial.
- Sections 15-27 focus on defining, validating, and regulating admissions and confessions by parties or persons relevant to the suit, emphasizing voluntariness and truthfulness for their probative value in court.

## Section 39. Opinion of Experts

Section 39 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 governs the "Opinion of Experts" in legal proceedings. It states that when a court has to form an opinion upon a point of foreign law, science, art, or any specialized field, or on identity of handwriting or finger impressions, the opinions of persons specially skilled in such areas are relevant facts and are admissible as expert evidence.

Key points include:

- **Relevance of Expert Opinion:** Expert opinions are admitted as relevant facts when the matter lies beyond the common knowledge or experience of the average person, such as medical, forensic, scientific, or technical issues.
- **Role of Experts:** Experts provide their opinions based on specialized knowledge or experience. Their opinions assist the court in understanding complex matters and forming a correct judgment.
- **Examples:**  
Medical expert opinions on poisoning symptoms.  
Handwriting experts on signature verification.  
Forensic examiners on digital evidence under Section 79A of the IT Act.
- **Supporting and Contradictory Facts:** Facts bearing upon or inconsistent with an expert's opinion are also relevant under Section 40 BSA, helping courts assess credibility.
- **Grounds of Opinion:** Section 45 of BSA makes the basis of expert opinions (methods, tests, experiments used) relevant, promoting transparency in expert evidence.
- **Discretion of the Court:** Although expert opinions are relevant, courts are not bound by them and can weigh them along with other evidence.



# Section 57. Primary Evidence



- **Definition:** Primary evidence refers to the original document itself produced for the inspection of the court.
- **Explanations:**
  - When a document is executed in several parts, each part is primary evidence.
  - Counterparts, each executed by some parties, are primary evidence against those parties.
  - Multiple documents made by a uniform process (like printing or photography) serve as primary evidence of each other but not of the original.
  - Electronic or digital records stored simultaneously or sequentially in multiple files, video recordings stored and transmitted simultaneously, and files stored in multiple computer locations—all qualify as primary evidence, provided they are produced from proper custody and are not disputed.
- **Significance:** Primary evidence carries the highest evidentiary value, representing the best proof of the content of a document or record.

## Section 58. Secondary Evidence

- **Definition:** Secondary evidence is relevant when the primary evidence (original document) is not available for inspection by the court.
- **Types:**  
Certified copies, copies produced by mechanical processes ensuring accuracy (like photocopies), oral accounts of a document's contents, and written or oral admissions stating the document's contents are all classified as secondary evidence.
- **Usage:** Secondary evidence can be used only when the original cannot be produced for valid reasons (e.g., lost, destroyed, or in the custody of the opposing party).

| Aspect            | Primary Evidence                                          | Secondary Evidence                                           |
|-------------------|-----------------------------------------------------------|--------------------------------------------------------------|
| Definition        | Original document or equivalent electronic/digital record | Certified copies, mechanical copies, oral/written admissions |
| Legal Weight      | Highest evidentiary value                                 | Accepted when original is unavailable                        |
| Examples          | Original contract, CCTV footage, official digital records | Photocopies, oral description, certified copies              |
| Condition for Use | Must be produced before the court if available            | Used only if the original is genuinely unavailable           |

# Section 61. Electronic or Digital Records

Section 61 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 addresses the admissibility and legal recognition of electronic or digital records as evidence.

Key Points of Section 61 BSA

- **Admissibility of Electronic or Digital Records:**  
The section clarifies that nothing in the BSA shall be used to deny the admissibility of any electronic or digital record solely on the ground that it is in electronic or digital form.
- **Equal Legal Effect:**  
Electronic or digital records are granted the same legal effect, validity, and enforceability as traditional documents. This means emails, electronic contracts, digitally signed documents, and other digital data are treated on par with physical documents in court proceedings.
- **Conditions:**  
While electronic or digital evidence is admissible, it must satisfy the conditions set out in Section 63 regarding authenticity, integrity, and proper certification to be considered valid and reliable.
- **Contextual Examples:**  
An email sent with acknowledgment can be accepted as evidence.  
Digitally signed contracts hold the same weight as paper contracts signed physically.

## Section 63. Admissibility of electronic records.

Section 63 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 redefines the admissibility of electronic records as evidence in Indian courts with specific conditions.

### Key Provisions

- **Deemed Document:** Any information in an electronic record—which includes printed, stored, recorded, or copied data in various electronic forms like computers, optical or magnetic media, communication devices—is deemed a document if specified conditions are met.
- **Conditions for Admissibility:**  
The electronic record must be produced by a computer or communication device functioning properly without errors affecting content accuracy. The record should come from a system routinely used for such activities during the relevant time and must represent information fed into the system in the ordinary course of activities.
- **Certification Requirement:** Every electronic record must be accompanied by a certificate that:
  - Identifies the electronic record and describes how it was produced;
  - Provides details of the device and system involved;
  - Confirms the system was operating correctly during relevant periods.
- **Primary Evidence Status:** Printed copies of electronic records are admissible as primary evidence without needing the original. Different stored versions or copies of electronic records are also considered primary evidence if produced from proper custody.
- **Practical Examples:**
  - Printed bank statements certified by the bank's IT head.
  - Recorded CCTV footage produced by a functioning security system with proper certification.
  - Digital photographs or emails presented with certification of origin and authenticity.

## **Section 136. Production of documents or electronic records which another person, having possession, could refuse to produce.**

### **(Exclusion of Oral by Documentary Evidence)**

- A person cannot be compelled to produce documents or electronic records in their possession if another person, who actually owns or controls those documents/electronic records, could refuse to produce them if the document was in their possession.
- Essentially, this provision protects personal control or ownership rights over documents and electronic records, preventing indirect compulsion through a third party.
- Production of such documents requires the consent of the actual rightful possessor or controller of the document/record.
- This ensures that documents or records cannot be forced out of someone who is not the real custodian, respecting privacy and control rights.
- Example for clarity:
  - a. If a journalist has confidential documents given by a source, the journalist cannot be compelled to produce them in court if the source (who originally had possession) refuses to consent.
  - b. Similarly, a lawyer cannot be compelled to produce client emails if the client refuses consent, based on privilege.



# Section 140-144. Examination & Cross-Examination

Sections 140 to 144 of the Bharatiya Sakshya Adhiniyam (BSA), 2023 regulate the examination of witnesses during court proceedings.

## Section 140: Order of Production and Examination of Witnesses

- The court regulates the order in which witnesses are produced and examined.
- This regulation is based on the existing laws and practices in civil and criminal procedure.
- In absence of such laws, the court exercises its discretion to decide the order.

## Section 141: Judge to Decide Admissibility of Evidence

- When a party proposes to give evidence, the judge may ask the relevance of the evidence.
- The judge admits evidence only if it is relevant to the facts in issue.
- If evidence depends on another fact being proved first, the court may in its discretion decide the sequence of proving those facts.

## Section 142: Examination of Witnesses

- Witness examination by the party who calls them is called **examination-in-chief**.
- Examination by the adverse party is called **cross-examination**.
- Subsequent examination by the party who called the witness, aimed at clarifying cross-examination doubts, is **re-examination**.

## Section 143: Order of Examinations

- **First examination-in-chief**, then **cross-examination**, then **re-examination** happen sequentially.
- Cross-examination need not be confined to facts covered in examination-in-chief.
- Re-examination focuses on matters raised during cross-examination, with court permission required for new issues.

## Section 144: Cross-examination of Person Called to Produce Document

- A person summoned only to produce a document isn't a witness.
- Such a person cannot be cross-examined unless they are called as a witness.



## Section 158. Impeaching Credit of Witness

It specifies the ways in which the credibility or trustworthiness of a witness can be challenged by the adverse party or, with the court's consent, by the party who called the witness.

Ways to Impeach Credibility:

- **Testimony from persons familiar with the witness:** Others may testify that based on their knowledge, they believe the witness to be unworthy of credit.
- **Proof of corruption or bribery:** Showing that the witness has been bribed, offered a bribe, or received any corrupt inducement to give false evidence.
- **Contradictory prior statements:** Introducing evidence of former statements made by the witness inconsistent with parts of their current testimony.



## Section 165. Production of Documents

This section pertains to the production of documents in court proceedings.

Key Provisions:

- A witness summoned to produce a document must bring it to the court if it is in their possession or power, even if they object to its production or its admissibility.
- The court retains the authority to decide the validity of any such objection.
- If a document requires translation for the court's inspection, the court may direct the translator to keep the contents confidential unless the document is admitted as evidence.
- Certain privileged documents, such as communications between the Ministers and the President of India, cannot be compelled for production.



